

**Court No. - 3**

**Case :-** WRIT - C No. - 6671 of 2012

**Petitioner :-** M/S Tarunika Gaur Housing & Commercial Ltd.

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** D.S. Pandey

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Amitava Lala, J.**

**Hon'ble Pradeep Kumar Singh Baghel, J.**

Since the matter relates to the Power Corporation, the matter is released.

Let it be placed before appropriate Bench as fresh and as early as possible.

**Order Date :-** 7.2.2012

Gss

**Court No. - 21**

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**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** D.S. Pandey

**Respondent Counsel :-** C.S.C., Pankaj Kumar Shukla

**Hon'ble Ashok Bhushan,J.**

**Hon'ble Mrs. Sunita Agarwal,J.**

Heard learned counsel for the petitioner and Shri Pankaj Kumar Shukla for the respondents no. 2 to 4.

By this petition, the petitioner has prayed for a mandamus directing the respondent no.4 to decide the objections/representations of the petitioner dated 27/4/2011 and 15/6/2011. In the said objections the petitioner has raised grievance against the bills which have been raised against the petitioner.

Learned counsel appearing for the respondents submits that the remedy of the petitioner is to file a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005. There being specific statutory remedy available to the petitioner, we are of the view that the petitioner may invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005 in accordance with law. We, however, make it clear that in case the petitioner submits any complaint in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 the same may be considered and disposed of.

With the aforesaid observation, the writ petition is disposed of.

**Order Date :-** 9.2.2012

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